



**Order under Section 78(11)
Residential Tenancies Act, 2006**

Citation: Nawab v Platts, 2025 ONLTB 94671

Date: 2025-12-10

File Number: LTB-L-087526-25-SA

In the matter of: 20 WATERSTONE WAY
WHITBY ON L1N0M3

Between: Riyaz Nawab
Sajana Riyaz

Landlord

And

Amanda Platts
Elizabeth Platts

Tenant

Riyaz Nawab and Sajana Riyaz (the 'Landlord') applied for an order to terminate the tenancy and evict Elizabeth Platts and Amanda Platts (the 'Tenant') and for an order to have the Tenant pay the rent they owe because the Tenants did not meet a condition specified in the order issued by the LTB on June 3, 2025, with respect to application LTB-L-016744-25.

The Landlord's application was resolved by order LTB-L-087526-25, issued on October 27, 2025. This order was issued without a hearing being held.

The Tenant filed a motion to set aside order LTB-L-087526-25.

This motion was heard by videoconference on December 2, 2025.

The Landlord, Riyaz Nawab, the Landlord's Legal Representative, Jayant Unny, and the Tenant, Amanda Platts, attended the hearing.

Determinations:

1. The previous order provided that the Landlord could apply to the Board under section 78 of the *Residential Tenancies Act, 2006* (the 'Act') without notice to the Tenant to terminate the tenancy and evict the Tenant if the Tenant did not meet certain conditions specified in the order.

2. Pursuant to section 78(11) of the Act, the issues are as follows:

- Did the Tenant breach the previous order? If the answer to that question is “NO”; then the motion must be granted and the eviction order set aside;
- If the Tenant did breach the previous order, the issue becomes whether or not the Board is satisfied, having regard to all the circumstances, that it would not be unfair to set aside the eviction order. If the Board determines that it would not be unfair to set aside the eviction order, the motion must be granted and the eviction order must be set aside. Pursuant to section 78(12), the Board may then amend the previous order if it is deemed appropriate to do so;
- If the Board is not satisfied that it would not be unfair to set aside the eviction order, then the Board must decide whether or not to delay lifting the stay of the eviction order.

Breach

3. There is no dispute that the Tenant did not pay the Landlord \$1,000.00 towards the arrears on or before October 15, 2025. As such, I am satisfied that the Tenant failed to meet a condition specified in the order issued by the Board on June 3, 2025 with respect to application LTB-L-016744-25.

Set Aside

4. The Tenant testified that she had issues with etransferring the Landlord funds on October 15, 2025 due to the postal strike. The Tenant testified that the account used to pay the Landlord requires her to bring the funds to a postal office to arrange the transfer. The Tenant testified that she does not have the Landlord's address and cannot pay him with another method.
5. The Tenant testified that she contacted the Landlord informing him of the delay and asked if the Landlord could extend the due date for the arrears payments to the 20th of the month instead of the 15th. The Tenant testified that the Landlord did not respond and the \$1,000.00 was paid on October 20, 2025.
6. The Landlord opposed the Tenant's motion submitting that the Tenant could have contacted the Landlord's Legal Representative for payment instructions and the late or lack of payments have caused the Landlord to suffer financially.
7. There is no dispute that the Tenant breached the previous order again after the L4 application was filed. The Tenant did not pay the November and December rent and the \$1,000.00 due November 15, 2025 on time and in full. The Tenant explained that she was confused by the calculations in the exparte order issued on October 27, 2025.
8. The parties agree the monthly rent is \$3,200.00 and the amount owed to the Landlord as of the hearing date is \$8,800.00 to December 31, 2025.

9. The Tenant testified that she could pay the Landlord all arrears by January 31, 2026.
10. Having regard to all of the circumstances, and in balancing the prejudice to the Tenant against any potential prejudice to the Landlord, I find that it would not be unfair to set aside order LTB-L-087526-25 and provide the Tenant a final opportunity to continue the tenancy. The Tenant has three children and has made payments to the Landlord. The Tenant was complying with the consent order until October 15, 2025. The Act is remedial legislation and the courts have determined that evicting a tenant is a remedy of last resort.
11. Prejudice to the Landlord is minimal as the Tenant is ordered to pay in full and reach a zero balance by January 31, 2026, an earlier date the Tenant would have paid in full if she had complied with the consent order issued June 3, 2025 and if the Tenant does not void this order, the Landlord is able to enforce this order with the enforcement office as early as February 1, 2026. The Landlord was agreeable to delaying the lifting of the stay on the eviction order 60 days if the motion was denied. In my view, this order provides the same outcome in a sense as it affords the Landlord the opportunity to proceed with eviction on February 1, 2026.

It is ordered that:

1. The motion to set aside order LTB-L-087526-25, issued on October 27, 2025, is granted.
2. Order LTB-L-087526-25, issued on October 27, 2025, is set aside and cannot be enforced.
3. The previous order issued on June 3, 2025 with respect to application LTB-L-016744-25 is cancelled and replaced with this order.
4. The tenancy between the Landlord and the Tenant is terminated unless the Tenant voids this order.
5. **The Tenant may void this order and continue the tenancy by paying to the Landlord or to the LTB in trust:**
 - \$8,800.00 if the payment is made on or before December 31, 2025. See Schedule 1 for the calculation of the amount owing.

OR

- \$12,000.00 if the payment is made on or before January 31, 2026. See Schedule 1 for the calculation of the amount owing.
6. The Tenant may also make a motion at the LTB to void this order under section 74(11) of the Act, if the Tenant has paid the full amount owing as ordered plus any additional rent that became due after January 31, 2026 but before the Court Enforcement Office (Sheriff) enforces the eviction. The Tenant may only make this motion once during the tenancy.

7. **If the Tenant does not pay the amount required to void this order the Tenant must move out of the rental unit on or before January 31, 2026.**
8. If the Tenant does not void the order, the Tenant shall pay to the Landlord \$2,483.06. This amount includes rent arrears owing up to the date of the hearing and the cost of filing the original L1 application with the last month's rent deposit and interest owing deducted. See Schedule 1 for the calculation of the amount owing.
9. The Tenant shall also pay the Landlord compensation of \$105.21 per day for the use of the unit starting December 3, 2025 until the date the Tenant moves out of the unit.
10. If the unit is not vacated on or before January 31, 2026, then starting February 1, 2026, the Landlord may file this order with the Court Enforcement Office (Sheriff) so that the eviction may be enforced.
11. Upon receipt of this order, the Court Enforcement Office (Sheriff) is directed to give vacant possession of the unit to the Landlord on or after February 1, 2026.

December 10, 2025

Date Issued

Vicky Liu

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

In accordance with section 81 of the Act, the part of this order relating to the eviction expires on August 1, 2026 if the order has not been filed on or before this date with the Court Enforcement Office (Sheriff) that has territorial jurisdiction where the rental unit is located.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before December 31, 2025

Rent Owing To December 31, 2025	\$35,200.00
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$26,586.00
Total the Tenant must pay to continue the tenancy	\$8,800.00

B. Amount the Tenant must pay to void the eviction order and continue the tenancy if the payment is made on or before January 31, 2026

Rent Owing To January 31, 2026	\$38,400.00
Application Filing Fee	\$186.00
Less the amount the Tenant paid to the Landlord since the application was filed	- \$26,586.00
Total the Tenant must pay to continue the tenancy	\$12,000.00

C. Amount the Tenant must pay if the tenancy is terminated

Rent Owing To Hearing Date	\$5,624.42
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$3,200.00
Less the amount of the interest on the last month's rent deposit	- \$127.36
Total amount owing to the Landlord	\$2,483.06
Plus daily compensation owing for each day of occupation starting December 3, 2025 **Ongoing daily compensation continues to accumulate until the total amount owing (excluding costs) is \$50,000.00.	\$105.21 (per day)